

IN THE HONORABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA
SITTING IN ITS MARCH TERM, A.D. 2026

BEFORE HIS HONOR : YAMIE QUIQUI GBEISAY, SR.....CHIEF JUSTICE
BEFORE HER HONOR : JAMESETTA H. WOLOKOLIE..... ASSOCIATE JUSTICE
BEFORE HIS HONOR : YUSSIF D. KABA..... ASSOCIATE JUSTICE
BEFORE HER HONOR : CEATNEH D. CLINTON-JOHNSON.....ASSOCIATE JUSTICE
BEFORE HIS HONOR : BOAKAI N. KANNEH.....ASSOCIATE JUSTICE

Miatta Sonni-Jarry, of the City of Monrovia, County of)
Montserrado, Republic of LiberiaAppellant)
Versus) Appeal

SIB Bank Liberia Limited, by and thru its Managing)
Director of the City of Monrovia, County of Montserrado,)
Republic of Liberia Appellee)

GROWING OUT OF THE CASE:

SIB Bank Liberia Limited, by and thru its Managing)
Director of the City of Monrovia, County of Montserrado,)
Republic of LiberiaPetitioner)
Versus) Petition for Judicial Review

Miatta Sonii-Jarry, of the City of Monrovia, County of)
Montserrado, Republic of LiberiaRespondent)

GROWING OUT OF THE CASE:

Miatta Sonni-Jarry, of the City of Monrovia, County of)
Montserrado, Republic of LiberiaComplainant)
Versus) Wrongful Dismissal/
Unfair Labor Practice

SIB Bank Liberia Limited, by and thru its Managing)
Director of the City of Monrovia, County of Montserrado,)
Republic of LiberiaDefendant)

Heard: June 3, 2026
Delivered: August 27, 2026

MADAM JUSTICE WOLOKOLIE DELIVERED THE OPINION OF THE COURT

This appeal currently before us evolves from the final ruling of the National Labor Court granting a petition for judicial review in favor of the appellee, SIB Bank Liberia Limited, resulting from a default judgment entered by the Hearing Officer of the Ministry of Labor

against the appellee SIB bank from a complaint of wrongful dismissal and unfair labor practice filed by the appellant, Miatta Sonii Jarry.

In her complaint to the Ministry of Labor on January 21, 2025, the appellant, Miatta Sonni-Jarry, substantially alleged that she was employed by the appellee bank in May 2017, and served in various capacities as Head of Credit, Head of Risk Management (2019-2023), Head of IT Audit (2023/2024) and Head of Treasury (May –December 2024). The appellant averred that she was summarily dismissed on December 27, 2024 for absenteeism and insubordination; that the reasons stated in her letter of dismissal by the appellee bank was that she had been absent from work for two days, October 25, 2024 and December 23, 2024, without any excuse; that on December 6, 2024, she did not return to work after her lunch break at mid-day; and although her initial request for leave had been previously denied by the Managing Director, who by virtue of his position supervised her immediate boss, the General Manager, she had subsequently gone to the Managing Director requesting her leave and upon whose approval she had taken leave in early December 2024.

The appellant further stated that she had a fall-out with the Managing Director after an incident with one of the Bank's Board Members, and since then she had been routinely targeted by the Managing Director who use her absence from work on Saturdays, although he was fully aware that she was a devout Seven Day Adventist and that Adventists are exclusively barred from engaging in any form of secular work on Saturdays, and therefore it was a non-negotiable precondition for her accepting the appellee's employment offer; that in consonance thereof, she had been consistently excused from all work-related activities on all Saturdays for the entire duration of her employment prior to her wrongful and illegal dismissal. The appellant therefore prayed the Ministry of Labor to enter judgment in her favor and award her compensation for twenty-four months for her illegal dismissal, and to order the appellee to make payments to her for all accrued annual leave days for the period of three years out of her seven years employment with the appellee.

Upon receipt of the appellant's complaint, the Minister of Labor forwarded same to the Division of Labor Standards for the conduct of an investigation. The parties were cited by the hearing officer to a conference, intended for finding an amicable solution, but when same did not yield the expected result, the Hearing Officer had the case assign for a full investigative hearing consistent with the labor laws practices of the Republic of Liberia.

The records reveal that the Hearing Officer, during his investigative hearings, sent out assignments for hearings on May 7, 2025, but the appellee fail to appear. The Hearing officer suspended the hearing, warning that if the appellee failed to appear at a subsequent hearing, he would proceed to hear the matter in accordance with law. Thereafter, another assignment was sent out for hearing on May 21, 2025, but again neither the appellee counsel or the bank itself was present for the hearings on the scheduled date. The appellant having represented at the hearing that the appellee was again served the notice of assignment for the hearing on April 21, 2025, but had failed to appear without proffering an excuse, prayed for and was granted a default judgment, and whereupon the appellant proceeded to make said imperfect judgment perfect. The appellant along with a former staff took the stand and gave oral evidence, and thereafter presented several documentary evidence to authenticate her claim of wrongful dismissal by the appellee. At the conclusion of the appellant's testimonies, relevant documentary instruments were put into evidence.

On June 27, 2025, the Hearing Officer gave his ruling stating that the dismissal of the appellant was inconsistent with section 14.3 of the Decent Work Act which provides for the dismissal of employees for their conduct of absenteeism from work for a period of ten (10) consecutive days or twenty (20) consecutive days over a period of Six (6) months without good cause or just explanation; that the appellant's dismissal by the appellee was a product of malice, hatred, prejudice and a miscarriage of poor administrative errors. Consequently, the appellant was awarded United States Seventy-Four Thousand Five Hundred Thirty Dollars (US\$ 74,530.00) constituting her salary for Fourteen (14) months in lieu of her reinstatement as well as full payment for her outstanding leave days for three years and her provident fund.

Upon receiving copies of the Hearing Officer's ruling, the appellee proceeded to file a petition for Judicial Review before the National Labor Court on July 9, 2025. In its petition, the appellee prayed that the default judgment entered by the Hearing Officer be rescinded, vacated and set aside and that the case be remanded to the Ministry of Labor for a new trial since the ruling was illegal, contrary to law, and found wanting of due process as the Hearing Officer insisted on serving the notices of assignment on the appellee bank itself, instead of serving same on the appellee's counsel, Sannoh and Partners, PC, and the assignments for hearings on May 7, and 21, 2025, having been served on the appellee bank and not legal counsel for the appellee, same was contrary to section 8.3.3 of the Civil Procedure Law of Liberia which

provides that service of all papers and precepts for a party in any action be served on the lawyer representing such party.

On September 30, 2025, the Judge of the National Labor Court, His Honor Joseph M. Kollie Sr., upon hearing arguments *pro et con*, entered a final ruling granting the appellee's petition which effectively overturned and set aside the Hearing Officer's ruling on account that the investigative process lacked due process because of improper service. In his ruling, the Judge stated that the judgment of default rendered by the Hearing Officer could not bind or obligate the appellee in the face of the appellant's non- service of the notice of assignment for the hearing of May 7, 2025 and May 21, 2025, on the Sannoh & Partners, PC who had appeared on record as the legal counsel representing the appellee in the matter, and where the records did not show any notice of withdrawal of the Law Firm's representation or a notice from the appellee bank of change of counsel; that the non-service of the notices of assignment on the appellee's counsel constituted a denial of the appellee's right to due process, and it was incumbent upon the appellant counsel as well as the Hearing Officer to inspect the records to ensure that the appellee's counsel was duly served the notices of assignment before praying for, or granting the default judgment.

The appellant noted exceptions to the final ruling of the National Labor Court and announced an appeal to the Supreme Court, seeking to have the ruling overturned and the hearing officer's ruling affirmed. In its bill of exceptions, the appellant contends that the Labor Court Judge among other things failed to consider that the Hearing Officer's ruling was supported by evidence; that from the commencement of the hearing, the notices of assignments were served on the appellee bank who ensured that its counsel of records was present and which created a course of dealing for service of notices of assignment in the case; that the Judge misapplied the cited legal precedents in his ruling and erroneously disregarded the evidence surrounding the service of notices of assignment on the appellee and its counsel; that the appellee management action of intentionally ignoring the notices of assignment served upon it and failing to ensure that its counsel appear for the stated hearings which preceded the appellant's application for default judgment amounts to bad faith, and the Labor Court's failure to properly examine all the evidence regarding the complainant's wrongful dismissal and breach of employment terms under the Decent Work Act of 2015, accounts for a ruling which is inconsistent with the applicable laws in this jurisdiction.

Given the contention of the appellee, the singular issue pertinent to the disposition of this matter is where the appellee appeared by counsel on the records of the investigation at the Ministry of Labor, whether all assignments thereafter should have been served on said counsel, and the appellant's failure to do so constitutes a reversible error?

The Court sees in the certified records that the Sheriff's returns show that all seven (7) notices of assignment were served on the appellee bank and not at the appellee counsel Law Firm. The records reflect the following assignments and services:

1. The 1st assignment, dated March 7, 2025, called for a conference on **March 17, 2025**. (Assignment was served on the offices of the appellee's counsel).
2. The 2nd assignment, dated March 24, 2025, called for another conference on **March 28, 2025**, and same was served on the appellee bank.
3. The 3rd assignment, dated March 28, 2025, called for an investigation /conference on **April 7, 2025**, and same was served on the appellee bank.
4. The 4th assignment, dated April 8, 2025, called for continuation of hearing on **April 18, 2025**, and same was served on the appellee's bank.
5. The 5th assignment, dated April 21, 2025, called for continuation of hearing on **May 2, 2025**, and same was served on the appellee bank who had the attorney from its legal office present at the bank sign for this notice of assignment.)
6. The 6th assignment, dated May 2, 2025, called for continuation of hearing on **May 7, 2025**, and same was served on the appellee bank.
7. The 7th assignment, dated May 7, 2025, called for called for continuation of hearing on May 21, 2025, and same was served on the appellee bank.

The appellant in her brief and during her argument before the Court, argued that the Labor Court Judge erred when he granted the petition for judicial review and revised the Hearing Officer's ruling contrary to the statute; that the Hearing Officer's ruling was legally justified, given that from the commencement of the hearing the notices of assignment were served on the appellee bank who ensured that its counsel of records was informed and present for hearings, and which practice created a course of dealing for services of assignments; that the Labor Court Judge misapplied the cited legal precedents in his ruling and erroneously disregarded this practice of service of assignments where the appellee bank when served with notices would informed its counsel to appear as evidence by the record; that given the appellee bank failed to notify its legal counsel to appear for the hearings on May 7 and 21, said failure constituted a ground for the appellant's application for default Judgment. The

appellant cites the case, *Inter-Con Security System v. Williams et al.*, stating that it is the appellee and not its counsel that bears the greater interest in the case and burden in the event it loses the case, and therefore the appellee was barred from being overly dependent on its lawyer to the extent of neglecting its interest in the case and did not inform its legal counsel of the assignments.

The appellee on the other hand argued that the announcement of the appellee's legal counsel on the records of the hearing meant that consistent with the procedures applicable before all courts and or administrative hearings in this jurisdiction, all subsequent notices of assignment should have been served on its counsel of record and not the appellee itself, especially where the appellee's legal counsel had previously appeared and participated in the hearings; that the only basis for a direct service on the appellee bank was where its counsel of record could not be found or the bank had written informing the Hearing Officer that it had terminated the services of its counsel .

The Court notes the citation of the case *Inter-Con Security System v. Williams et al.*, Supreme Court Opinion, October Term 2009 by the appellants and says that same is not analogous to the facts and circumstances of this case. In the *Inter-Con Security* case, the complainant/appellee Paul S. Saide having worked with the Inter-Con Security Systems for fifteen years was redundant and asked to sign the redundancy document and receive his redundancy pay. Following his refusal to sign the redundancy document, he was dismissed. The appellee then filed a complaint for wrongful dismissal with the Ministry of Labor and the Hearing Officer called the parties for an investigation into the matter. Inter-Con lawyer having failed to appear for several assigned hearings, the Hearing Officer, upon appellee Saide's request, granted the default judgment and proceeded to hear evidence perfecting the default prayed for. The Hearing Officer ruled that the appellee Saide was wrongfully dismissed and he order reinstatement or payment thereof in an amount of US\$ 5,460.00. Inter-Con then appealed the ruling from the Ministry of Labor to the National Labor Court which upheld the Hearing Officer's ruling. Inter-Con appealed the National Labor Court's ruling to the Supreme Court and the Supreme Court after a hearing of the appeal ruled that the case records established that Inter-Con had failed to honor numerous assignments for hearing at the Ministry of Labor, and that the Ministry had indeed exercise extraordinary patience by granting multiple continuances before finally granting the default judgment; that as regard the allegation of Inter-Con that it had changed counsel and was not aware of subsequent assignments made on its former counsel of record, the Court rejected the argument and held that in line with the Civil Procedure Law Code Rev. 1.8, it was the responsibility of Inter-Con

to have notified the Ministry of Labor of its change of counsel. The Court affirmed the National Labor Court's ruling upholding the ruling of the Ministry of Labor.

This Court says with respect to the appellant's citation of the Inter-Con case as its reliance, there is no issue in this case that required the appellee to notify the Hearing Officer that it had changed its legal counsel so that all subsequent services of assignments would be served on the appellee bank itself. We agree that while it is prudent that the appellee bank be involved in matters concerning it before the courts and quasi-judicial or administrative hearing where their interest is at stake, this does not invalidate the statute, particularly section 8.3.3 of the Civil Procedure Law which makes it mandatory to serve a party litigant through his or her lawyer or counsel of record. To require or insist that the appellee bank be involved in the day-to-day legal matters being handled by its legal counsel is absurd as this assertion defeats the very purpose of the various provisions of a client's legal representation under our laws, and places unnecessary burden on the appellee bank which had contracted the Sannoh and Partner, PC. to handle the bank's legal business in this matter.

Our Civil Procedure Law Revised Code 1: 8.3. **Service of papers** lays out the procedure by which a party cited before judicial and or administrative forum including those involving labor matters as in the instant case shall be served. Sections 8.3. (1) (3) & (4) state:

1. General requirement. Every order required to be served, every pleading, every written motion other than one which may be heard *ex parte* and every written notice, appearance, demand, offer of judgment, and similar paper shall be served upon each of the parties affected thereby; but no service need be made on parties in default for failure to appear except as provided in section 9.2(2)
3. *Upon an attorney.* Except as otherwise required by law or order of court, papers required to be served upon a party in a pending action **shall** [emphasis] be served upon his attorney by one of the following methods:
 - (a) By delivering the paper to the attorney personally;
 - (b) By mailing the paper to the attorney by registered mail at the address designated by him for that purpose or, if none is designated, at his last known address;
 - (c) If the office of the attorney is open, by leaving the paper with a person in charge;
 - (d) By leaving the paper at the residence of the attorney within the Republic with a person of suitable age and discretion; providing that the person to whom the paper is delivered is then residing therein. Service upon an attorney shall not be made at his residence unless service at his office

cannot be made. Receipt of the paper may be proved by a receipt by the party to whom the paper was delivered.

4. *Upon a party.* If a party has not appeared by attorney or his attorney cannot be served, service shall be upon the party himself by one of the following methods:
 - (a) By delivering the paper to the party personally;
 - (b) By mailing the paper to the party at his last known address by registered mail;
 - (c) By leaving the paper at the residence of the party within the Republic with a person of suitable age and discretion; providing that the person to whom the paper is delivered is then residing therein.

Based on section 8.3.3 of the above cited provision of our Code, it was mandatory for the appellant to have served the appellee's counsel the notices of assignment at its Law Office, and as opined by the Supreme Court in the case *The Management of Power Tech v. Sayouah et al.*, *Supreme Court Opinion, March term A.D. 2006*, which held that notices of assignment must be served on the opposing party only if the party has not appeared by counsel, or based upon the parties instructions to have the papers served on itself.

In this case currently before us, although the appellee bank had a known legal counsel, the Sannoh and Partners, PC, who had shown up and participated in previous hearings, and whose Law Office is known to the appellant's counsel, serving notices of assignments for hearings on the appellee bank was wrongful, and showed an attempt by the appellant to deprive the appellee of a proper legal representation. The fact that previous notices of assignments were served on the appellee who informed its legal counsel to appear for hearing, did not exempt the appellant from the responsibility of serving the notices of assignment on the appellee's counsel of record as required by the laws and practices in our jurisdiction.

What is especially perplexing to this Court is though the counsel for the appellant had all the previous notices leading up to the default judgment served on the appellee's office, the final ruling of the Hearing Officer granting the default judgment was served directly on the appellee's counsel instead of the appellee itself, which defeats the appellant's argument that appellee's conduct had established a pattern that paved the way for consistent service on the appellee itself, rather than on its counsel of records.

Given that this conduct of the appellant is contrary to the provisions of our law on service of notices of assignment, and the Supreme Court has mandated strict compliance with provisions of the statutes which are clear and unambiguous on its face, the Hearing Officer's

entry of default judgment following these missteps by the appellant was erroneous and contrary to our law and fundamental practice in our jurisdiction.

WHEREFORE AND IN VIEW OF THE FOREGOING, the final ruling of the National Labor Court setting aside the Hearing Officers ruling is hereby affirmed. The Clerk of this court is ordered to send a Mandate to the National Labor Court commanding it to order the Hearing Officer of the Ministry of Labor to resume jurisdiction over this case, hear the case anew, and give effect to the Judgment emanating from this Opinion. AND IT IS HEREBY SO ORDERED.

WHEN THIS CASE WAS CALLED FOR HEARING, COUNSELLORS LUCIA D. S. GBALA AND J. AWIA VANKAN OF THE HERITAGE PARTNERS AND ASSOCIATES, LLC. APPEARED FOR THE APPELLANT. COUNSELLORS A. NDUBUISI NWABUDIKE AND MOHAMMED E. FAHNBULLEH OF SANNOH AND PARTNERS. APPEARED FOR THE APPELLEE.